



DEPARTMENT OF THE NAVY
NAVAL SURFACE WARFARE CENTER
INDIAN HEAD DIVISION
3767 STRAUSS AVENUE
SUITE 201
INDIAN HEAD, MD 20640-5150

J&A No. FY25-OCT16-53
Code: 022

JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Contracting Activity.

The Naval Sea Systems Command, Naval Surface Warfare Center Indian Head Division (NSWC IHD), Contracts Division 022.

2. Description of the Action Being Approved.

This requirement will be a sole source contract for RAID-M 100 Handheld Propylene Glycol Di-Nitrate (PGDN) detectors and associated accessory kits and consumable materials.

The contractor for this requirement is:
Bruker Detection Corporation
40 Manning Road
Billerica, MA 01821.

3. Description of Supplies/Services.

The Government has a requirement to procure up to [REDACTED] RAID-M 100 Handheld PGDN detectors and associated accessory kits and consumable materials for fleet-wide use over the duration of a five (5) year ordering period. The accessory kits support the commercially available RAID-M 100 Handheld PGDN to support specific U.S. Navy requirements. Consumable materials include drying filters, dopant cartridges, and backflush filters.

The Government's minimum needs have been verified by the certifying technical and requirements personnel.

Estimated Dollar Value:

	FY25 – 29 Total
O&M, N	[REDACTED]
FMS	[REDACTED]
Total	[REDACTED]

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 3204(a)(1), FAR 6.302-1(a)(2)(ii) Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

The Government has a need to replace the Otto Fuel II Detector from the MK15 Mod 0 and eliminate fleet-wide issues concerning durability, false readings, current calibration requirements, and consumables that are hard to obtain from the manufacturer. [REDACTED]

The detector must meet or exceed the following specifications:

- Detect the presence of Otto Fuel II, PGDN, and Hydrogen Cyanide (HCN).
- Eliminate false readings due to diesel and fryer fumes.
- Be cordless, lightweight, and easy to maneuver during spill and leak casualties with Otto Fuel II.
- Require easy to obtain consumables.
- Have a detector power source already approved for U.S. Navy use [REDACTED]

The RAID-M 100, manufactured by Bruker Detection Corporation, is the only device that meets or exceeds all of the Government's requirements for functionality. The RAID-M 100 detector comes equipped with a back flush filter, dopant cartridge, and drying filter.

[REDACTED] NSWC IHD (Code R14) put the RAID-M 100 through rigorous stress and durability tests, as well as various fuel and fryer fume vapor testing. These tests were done to ensure the detector's reliability and longevity. [REDACTED]

[REDACTED] RAID-M 100 maintenance consumables are currently in the Navy stock system due to the use of other Bruker Detection Corporation products in the U.S. Navy Surface ship magazines. This will allow the fleet easy access to all parts and material associated with the RAID-M 100.

RAID-M 100s were previously procured under contract N00174-22-D-0009, N00174-19-P-0002, and N00174-21-P-0216, which were sole source procurements, IAW 10 U.S.C. 2304(c)(1). A Government estimate was developed using previous actual costs and projected future estimated costs. Bruker Detection Corporation owns the Technical Data Package (TDP) for this requirement, and the Government does not have any rights or access to the TDP. Bruker Detection Corporation successfully manufactured and delivered all RAID-M 100 units and associated consumable materials to the Government without any quality or workmanship issues. If the Government were to qualify a second source it would take approximately [REDACTED] labor hours, which would equate to approximately \$[REDACTED]. Those costs are not expected to be recouped by competition. Qualifying a second source would also create unacceptable delays in meeting fleet requirements as the qualification process would take up to one year to complete for the Navy. Additionally, any delays would result in the expiration of the current MK15 consumables which would place the fleet in a hazardous situation of not being able to respond to spills of Otto Fuel II.

Bruker Detection Corporation has a production line already established with the proper tools and equipment. In addition, the Government will be able to forego first article testing, which adds a significant amount of time and money to the process. The cost savings to the Government by foregoing First Article testing is approximately \$ [REDACTED] based on the unit cost of \$ [REDACTED] and the labor hours associated with first article testing.

Bruker Detection Corporation has proven they have the capability to provide the RAID-M 100 units and associated accessory kits and consumable materials and is the only vendor that can meet the Government's required delivery dates.

[REDACTED]
[REDACTED] Having a portable hand-held device will help prevent the need for an electrical power source to operate and fight Otto Fuel II casualties throughout the fleet and ensure the safety of all personnel at risk.

If NSWC IHD does not procure the RAID-M 100s from Bruker Detection Corporation, undue burden will be placed on the RAID-M 100 programs and will result in substantial risk to cost, schedule, and quality of program deliverables.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

Market research was conducted, but no vendors, with the exception of Bruker Detection Corporation, can provide all of the requirements necessary to meet the Government's needs. Bruker Detection Corporation owns the TDP, and the Government does not have rights or access to the TDP to determine what components make up the RAID-M 100s to perform any further market research.

A Sources Sought notice was posted on 6 September 2024 to the System for Award Management (SAM) website to satisfy the requirement of Defense Federal Acquisition Regulation Supplement (DFARS) 206.302-1(d). It remained open for 15 days, and no response was received from industry.

The proposed contract was synopsisized on the Sam.gov website on 16 October 2024. There were no expressions of interest.

7. Determination of Fair and Reasonable Cost

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition.

At this time, NSWC IHD has no plans to compete future contracts for the types of supplies covered by this document. If another potential source emerges, NSWC IHD will assess whether competition for future requirements is feasible.

As this is a follow-on for supplies previously awarded on a non-competitive basis, in accordance with DFARS PGI 206.304(a)(S-70)(i), the prior J&A was provided to the approval authority for review. Approval of this J&A signifies the approval authority has made the determination required

by DFARS PGI 206.304(a)(S-70)(ii). Bruker Detection Corporation has the unique capabilities as detailed in paragraph 5.

CERTIFICATIONS AND APPROVAL

TECHNICAL CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Signature	Name (Printed)	Phone No.	Date

REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Signature	Name (Printed)	Phone No.	Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Signature	Name (Printed)	Phone No.	Date

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

Signature	Name (Printed)	Phone No.	Date

APPROVAL

Upon the basis of the above justification, I hereby approve, as Deputy Chief of the Contracting Office, the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1).

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1/7/25

Rachel N. Luther
Deputy Chief of the Contracting Office

Date